

JDF 641	Motion to Seal Multiple Conviction Records
A. Court Type: (ex: County or District) _____ Colorado County: <u>El Paso</u> Court Address: _____	<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado vs. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>	C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division/Courtroom: _____

1. Background

I submit this motion to seal multiple conviction records under C.R.S. §§ 24-72-709.

2. My Information *(the Defendant)*

Date of Birth: 1968-12-31
 Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B
 City, State, & Zip: Colorado Springs, Colorado 80921-2214
 Phone: (719) 555-0199 ext. 4417
 Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Do you need an interpreter? ☐ No ☐ Yes, in *(language)* _____

I want to attend court events: ☐ In-person ☐ Virtually *(by phone or web video)*

To switch your choice:

Use form *JDF 76 – General Motion*. File at least 48 hours before an event.

3. Records to be Sealed

The criminal conviction records are in the custody of the following agencies:

- ☐ District / County Court: *(case numbers)* _____
- ☐ Municipal Court: *(case numbers)* _____
 Mailing Address: _____
- ☐ Prosecuting Attorney
- ☐ Colorado Bureau of Investigation ***(Required)***
 ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☐ Sheriff's Department
Mailing Address: _____

☐ City Attorney
Mailing Address: _____

☐ Law Enforcement: (Agency Name) _____
Agency Mailing Address:
Agency Case Number: _____

☐ Other: (Name) _____
Mailing Address:

Arrest Number: (from fingerprint card) _____

Date of Arrest: _____

4. Offense Information

For each offense you were convicted, list the case number in this district, date sentenced, and the probation / parole supervision end date.

Charge	Case Number	Sentence Date	Supervision End Date

5. Eligibility

a) Convictions Not Eligible

Note: These are not eligible for sealing under C.R.S. § 24-72-706.

- A class 1 or Class 2 misdemeanor traffic offense;
- A class A or Class B traffic infraction;
- A conviction for a violation of C.R.S. § 42-4-1301(1) or (2);
- A conviction for an offense for which the underlying basis involved unlawful sexual behavior as defined in C.R.S. § 16-22-102(9);
- A conviction for a violation of C.R.S. § 18-6-401;
- Records that are subject to the procedure set forth in C.R.S. § 18-13-122(13); or
- A conviction that is subject to one or more of the following provisions:
 - Sentences for a crime involving extraordinary aggravating circumstances pursuant to C.R.S. 18-1.3-401(8);
 - A sentence for an extraordinary risk crime pursuant to C.R.S. § 18-1.3-401(10);
 - Sentencing for a crime involving a pregnant victim pursuant to C.R.S. § 18-1.3-401(13);
 - Sentencing for a crime pertaining to a special offender pursuant to C.R.S. § 18-18-407;
 - Sentencing for a criminal conviction for which the underlying factual basis involves domestic violence as defined in C.R.S. § 18-6-800.3;
 - Sentencing for a criminal conviction for a sexual offense pursuant to Part 4 of Article 3 of Titled 18 of the Colorado Revised Statutes;
 - Sentencing for any crime of violence pursuant to C.R.S. § 18-1.3-406;
 - Sentencing for a felony crime enumerated in C.R.S. § 24-4.1-302(1);
 - Sentencing for a felony offense in violation of C.R.S. § 18-9-202;
 - Sentencing for an offense classified as a class 1, 2, or 3 felony or a level 1 drug felony pursuant to any section of Title 18 of the Colorado Revised Statutes;
 - Sentencing for an offense in violation of Part 1 of Article 6 of Title 18 of the Colorado Revised Statutes;
 - Sentencing for an offense in violation of C.R.S. § 18-5-902;
 - Sentencing for an offense in violation of C.R.S. § 18-3.5-103; or
 - Sentencing for an offense in violation of C.R.S. § 18-7-203.

b) My Eligibility

I qualify to have my conviction records sealed because my convictions:

- ☐ Are eligible for sealing under C.R.S. § 24-72-709.
- ☐ Is a misdemeanor offense not eligible for sealing under C.R.S. § 24-72-709.

[Check one:](#)

- ☐ The **district attorney consents** to the sealing.
- ☐ I **request a hearing** to determine if the district attorney consents to the sealing.
- ☐ The **district attorney does not consent** to the sealing.

If the District Attorney does not consent (now or at the hearing), you must show by clear and convincing evidence that:

- the need for sealing the record is significant and substantial,
- the passage of time is such that you are no longer a threat to public safety, and
- the public disclosure of the record is no longer necessary to protect or inform the public.

6. Case Process

a) Appeals

Did you appeal any of the cases listed above? *(yes or no)* _____

If **yes**, please provide the following information:

Appeal Case Numbers: _____

Appellate Court: _____

Result: _____ Date: _____

b) Restitution

Do you still owe restitution? *(yes or no)* _____

7. Criminal Record

Is a verified copy of your criminal history record (dated within the last 20 days) attached?

☐ Yes ☐ No*

* If not, a copy must be filed within ten days of this Petition.

8. Harm or Adverse Consequences

The Defendant further shows the Court that the harm to Defendant's privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records.

Explain:

9. Certificate of Service

On (enter service date) _____

I certify that I sent a copy of this document to the prosecuting attorney by: (select one)

- ☐ Colorado Courts E-Filing. (only available to lawyers)
- ☐ Regular Mail, addressed to: (name) _____
Full address: _____
- ☐ Other: (explain) _____

10. Sign & Date

Print Your Name:

Maria-Alejandra O'Shaughnessy-Whitfield

Signature: _____

Date: _____

Counsel Signature: (if any) _____

JDF 642	Order to Seal Multiple Conviction Records	
A. Court Information Type: (ex: County or District) _____ Colorado County: <u>El Paso</u> Court Address:		<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: The People of the State of Colorado vs. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

The Court Completes the Rest of this Form

1. Background

The Court has read the Motion and any responses and reviewed the record and evidence presented at a hearing *(if applicable)*.

2. Defendant's Information

- a) Full Name: Maria-Alejandra O'Shaughnessy-Whitfield
- b) Birth Date: 1968-12-31
- c) Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B
 City, State, and Zip Code: Colorado Springs, Colorado 80921-2214

3. Court Findings

The Court hereby finds that it is appropriate to grant the Motion pursuant to C.R.S. § 24-72-709, as follows:

- The Defendant gave proper notice of the Motion to the prosecuting attorney's office.
- The offenses to be sealed are not among those listed in C.R.S. §§ 24-72-709(5)(a) or (c).
- The time requirements in C.R.S. § 24-72-709(2) have been met and according to the criminal history documents filed, the Defendant has not been convicted of a criminal offense in that period.
- The criminal history documents also reflect the Defendant is not disqualified for relief by C.R.S. § 24-72-709(3).

- ☐ The offenses to be sealed include misdemeanors ineligible for sealing pursuant to C.R.S. § 24-72-709, but the Court finds that the harm to the Defendant's privacy or the dangers of unwarranted, adverse consequences to the Defendant outweigh the public interest in retaining the records.

4. Court Orders

a) Records Sealed

Criminal records information specifically relating to and contained in:

- 1) The above-captioned case.
- 2) The following cases in this Judicial District:

3) Law Enforcement Agency: _____

Case number: _____

Arrest number: _____

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

b) Case Sealed

The Court directs the above order to the Clerk of Court to seal this and the above-listed cases.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and to every records custodian listed in the Motion.

Note to Defendant: The CBI charges a fee before its records are sealed.
Contact the CBI to pay that fee and for more information.

d) Other Orders

So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____